

PURCHASE ORDER

PO-07744

Workflow State: Pending Approval - Authorized

Supplier Name: **ENERGY PLUG LIMITED** **Date:** 28/07/2026
Reqd By Date: 28/07/2026

Sr	Item Code	Description	Quantity	Stock UOM	UOM	Rate	Amount
1	Design, installation & commissioning of load management module to be incorporated with DSE8610MKII	Design, installation & commissioning of load management module to be incorporated with DSE8610MKII	Lot 1	Lot	Lot	₦ 950 000.00	₦ 950 000.00
2	Onsite commissioning and start up cost	Onsite commissioning and start up cost	Days 3	Days	Days	₦ 350 000.00	₦ 1 050 000.00
3	Mobilization & Personnel Welfare	Mobilization & Personnel Welfare (Feeding, transport, accomodation for 3 days)	Lot 1	Lot	Lot	₦ 500 000.00	₦ 500 000.00

Total Quantity: 5 **Total** ₦ 2 500 000.00
VAT @ 7.5% ₦ 187 500.00
Grand Total: ₦ 2 687 500.00
Disable Rounded Total: ✓
In Words: NGN Two Million, Six Hundred And Eighty Seven Thousand, Five Hundred only.

Payment Terms Template: Default Payment Term - EO2M

For Engineering Automation Technology Limited



Operational Headquarters: KM 1 Ikot Udoma - Ataidung Road, Eket, Akwa Ibom State.
Tel: +2348103375124
5, Apagodo Street, Off Ada George Road, Port Harcourt, Rivers State.
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Ugochi Uwandu
Authorized Signature

**GENERAL CONDITION OF PURCHASE
ENGINEERING AUTOMATION TECHNOLOGY LIMITED**

In respect of goods/services delivered to

1. SCOPE OF WORK

ONSITE COMMISSIONING OF GENERATOR SYNCHRONIZATION PANEL

DURATION	ACTIVITY
1 DAY	Pre-commission & configuration
1 DAY	Live function testing of all scenarios
1 DAY	Client handover and training

2. APPLICABILITY



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2.1 The following general conditions of purchase shall apply to the extent that they are not contrary to stipulations which are either included in the purchaser's order or otherwise expressly confirmed by the purchasers in writing.

2.2 All trade terms used in the contractual documents shall be interpreted according to the incoterms 2020. However, the supplier always liable for and shall pay any customs duties or export duties levied in the country of export.

3. MODIFICATIONS

3.1 The Supplier may not introduce any modifications in the contractual design, manufacture or workmanship of goods without the written consent of the purchaser.

3.2 The Purchaser shall have the right to stipulate modifications regarding the extent of the order and design, manufacture and workmanship of the goods justifiable adjustments of price and delivery time arising there from may be called for by either partly.

3.3 No claims for compensation for increased costs, or for changed delivery time or other modification of the contract terms shall be enforceable unless confirmed in writing.

3.4 The liability of the supplier shall also extend to modifications called for by the Purchaser should the purchase against the Supplier's express advise to the contrary, insist on any particular material or any particular design, the Supplier shall have right before putting the modifications in hand, to disclaim in writing any responsibility for the consequences thereof.

4. SUB-CONTRACTORS

Sub-contracting shall not imply any limitation of supplier's liability to fulfill the contract.

5. LATE DELIVERY

5.1 If the supplier has reason to assume that he will not be able to maintain the agreed delivery time, we shall forthwith notify the purchase thereof stating the cause and estimated duration of the delay.

5.2 If the agreed delivery time for goods or for documents pertaining thereto is exceeded, and if the Supplier cannot prove that the delay is directly attributable to any circumstance which according to item 5 below is-to consider as valid ground for exemption. The Purchase shall be entitled to a compensation as liquidated damages-of 0.2% of the total price for each agreed partial delivery for each calendar day by which the delivery date exceeded p to a maximum of 10%. Such compensation shall be deducted from the Suppliers invoice.

5.3 Should the delivery be delayed by more than the stipulated, or should the Purchase have reasonable grounds to anticipate such delay, have right at any time to cancel the contract in whole or in part. Should the contract be cancelled in whole or in part and should be Supplier be unable to prove that the delay is directly attributable to any circumstance which according to item 6 is to be considered as valid ground for exemption, the Purchaser shall be entitled to indemnification for any proven loss.

6. GROUNDS FOR EXEMPTION



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6.1 The following circumstances shall be considered as grounds for exemption from liability for late delivery, provided that they arise subsequent to the conclusion of the agreement and are preventing the fulfillment of the delivery and provide that they could not reasonably have been anticipated by the Supplier at the conclusion of the agreement, namely, war, mobilization, civil commotion, revolt or riot, government confiscation, strike, lockout, blockade caused by the Supplier, by his sub-contractor or by any person for whom they are responsible, and which could not be prevented by exercise or reasonable care. Valid ground for exemption shall be deemed to exist for the period of time during which the fulfillment of the Supplier's undertaking is prevented by any of the circumstances listed above.

6.2 No ground for exemption may be invoked unless it can be proved that the Supplier has taken all reasonable steps to limit the effects of the hindrance and to make up for time lost once the hindrance has ceased to exist.

6.3 Nor may any ground from exemption be invoked if the Supplier has not (a) forthwith when the circumstance became unknown to him hereafter called the purchase invoice as a ground for exemption and (b) at the least within 7 days given written notice of the nature and anticipate consequence of the hindrance.

7. PACKAGING

Ordered goods must be packaged sufficient for protection against damages under normal condition

8. MARKING OF GOODS

All packages must be marked clearly with purchaser's order number and code with additional information as indicated in the order. Bill of lading must always be forwarded together with the goods and contain necessary information about marking, weight contents, number of packages etc.

9. TRANSPORT COST CAUSED BY LATE DELIVERY

If, due to late delivery, more expensive means of transportation must be used than otherwise intended, any additional cost shall be paid by the supplier.

10. EARLY DELIVERY

10.1 Neither part nor final delivery shall be effected before the agreed delivery time before the consent in writing of the purchaser.

10.2 Delivery Lead Time: 5 working days from receipt of payment

10.3 Deliverables: Signed commissioning Report: a. Including pre-start checklists and functional test results.

b. DSE8610 MKII Configuration files: Digital backup of all parameters and logic for sources 5,6, and 7

c. As-Found SLD Markups: Any modifications made to the relay interlocking logic during testing.

d. Site Acceptance Test (SAT) Certificate: Signed off by the commissioning lead and EATECH Rep

11. SECURITY FOR PERFORMANCE

Should, before delivery, reasonable grounds rise for doubting the ability of the supplier to fulfill his contractual undertaking the purchaser shall have the require adequate security to be provided by the supplier for the fulfillment of the contract failure to provide security forthwith on demand shall entitle the purchaser to cancel the agreement Wholly



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or in part. The supplier for the fulfillment of the contract failure to provide security to forthwith on demand

12. PRICE

- 12.1 Unless otherwise expressly agreed prices stated in purchase orders and acknowledgment of Order are fixed.
- 12.2 If a flexible price has been agreed, neither late nor early delivery maybe for obtaining a higher final price than the price chargeable for the goods when delivered at the agreed time of delivery

13 PAYMENT

- 13.1 Payment shall be made 50% on order and 50% after handover of FAT document.
- 13.2 If it is justified by the Circumstances, the purchaser shall have the right to demand for the fulfillment of the supplier's guarantee obligations.

13.3 Terms of Mobilization

- i) Client to ensure panel has been positioned and terminated safely and correctly
- ii) Client to confirm all generators to be synchronised are sync-ready and in ready working condition.
- iii) Client to ensure that there is proper isolation of gridline to safe operation on panel
- iv) Handover to allow non interrupted commissioning session

14 GUARANTEE

- 14.1 The supplier guarantees that the goods delivered, including tall contracted work, comply in every respect to the agreed requirements and that they are free from any defect in design material or workmanship.
- 14.2 The guarantor obligation will last for one year from date when the purchaser (or his client) has put the good in service.
- 14.3 It is implied guarantee obligation that the supplier is responsible for the goods being put in good and sound condition, at the place of their location, with no cost,
- 14.4 If any repair under the guarantee obligation is made subsequent to the goods having put in service, the guarantee period in respect of the repaired or replace goods shall be extended by.....year from the date when the guarantee work is approved by the purchaser up to a maximum of 24 months from the date putting the original goods in service.
- 14.5 Should the Supplier refuse or fail to fulfill within a reasonable time his guarantee obligation to the Purchasers satisfaction, the Purchaser shall be entitled to have the work carried out at Supplier expense.
- 14.6 The guarantee obligation of the supplier does not extend to defects proved to have been caused by wilful or negligent operation, Overloading, inadequate maintenance, or by the failure on the part of the purchaser to comply with any instruction given by the supplier with regard to manufacturing assembling or installation.
- 14.7 The supplier shall not be responsible for personal injury or for damage to property which is not included in his delivery unless it is proved by the circumstances that the supplier is guilty of gross negligence.

15 APPLICABLE LAW AND DISPUTE



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14.1 Dispute arising from the interpretation or application of the contract including any documents pertaining where to, shall be settled by arbitration in accordance with the Nigeria Law Act.

16 TAX

Payment shall be subjected to all Taxes/Levies as per applicable laws currently prevailing.

17 VAT

Vat Payable on all transactions will not be paid to vendor but will be withheld and remitted to Government.

ATTACHMENT 1 - PURCHASE ORDER ACCEPTANCE

Engineering Automation Technology Limited
Finance and Procurement Department
4B Block 19, Bashorun Okusanya Street, off Admiralty Way
Lekki Phase 1 - Lagos State

Subject: Purchase Order No: .00010, Dated: 28/07/2026

Wehereby acknowledge receipt and confirm our full acceptance of the referred document and hereby fully agree on its content without any reservation.

Name:

Signature:

Date:



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